Free loan for use of aesthetic equipment

For protocol study, training and operational testing

Agreement no. ..... · Date: ..... / ..... / ..... · Place: Tirana

The Parties

1 · LENDER

PHD SYSTEM Sh.p.k. — NIPT M27101203D — Rruga Donika Kastrioti 3, Kisha Apostolike e Re, Entrance 2, Floor 1, Apt. 1, No. 1, Tirana.
Represented by ....., in the capacity of .....

*Hereinafter «the Lender». The **NIPEC** and **PHD** trade marks belong to the Lender or to companies of the same group: every reference to NIPEC in this agreement is a reference to the Lender.*

2 · BORROWER

MEDICAL SPA GROUP AE — limited liability company — NIPT/NUIS L81309070J — Rruga Ymer Kurti, Olimpia Shopping Centre, Municipal Unit no. 5, Tirana.
Represented by ....., in the capacity of .....

Hereinafter «the Borrower».

The Parties agree as follows.

1 Subject matter, equipment and value

1.1 The Lender grants the Borrower the temporary and free use of the aesthetic equipment described in the table below (hereinafter «the Equipment»).

ITEM	VALUE
Model	**Multishape Afrodite VS++**
Serial number	**YD400337**
Accessories delivered	4 handpieces · power supply unit
Manufacturer	.....
Marking and conformity	.....
Replacement value *for the purposes of clauses 7 and 8 only*	**€ .....**

1.2 The Equipment is granted **free of charge**, solely for the study of working protocols, operational testing, technical demonstrations and internal professional training. This agreement **is neither a sale nor a lease**, transfers no ownership and creates no obligation to purchase.

1.3 Use for **paid treatments** on clients is not permitted. The Parties may authorise it only by a separate written agreement setting out the professional, safety and liability conditions **and the financial terms**: from the date of that agreement the relationship ceases to be free of charge and the agreed terms apply.

1.4 Together with the Equipment, the Lender delivers the manufacturer's **user manual** and **conformity documentation**. The Borrower acknowledges receipt in Annex 2.

2 Ownership, location and identification

2.1 Ownership of the Equipment remains with the Lender. Where the Equipment belongs to a third party or is subject to leasing, the owner is: ..... The Lender declares that it has the legal

right to grant the Equipment for use. The Borrower may not sell, pledge, lease, sub-lend or transfer it to third parties.

2.2 The Equipment is used exclusively at: centre ..... — installation address ..... Any relocation requires the Lender's prior written authorisation.

2.3 The Borrower shall **not remove or alter** plates, markings, the serial number or identifying marks, and shall **not apply its own branding** to the Equipment.

3 Term and termination

Delivery date	..... / ..... / .....
Scheduled return date	..... / ..... / .....
Term in calendar days	..... days

3.1 The loan runs for the term stated above. If no return date is stated, the term is **30 days** from delivery. Any extension requires the written agreement of both Parties.

3.2 The Lender may request the return of the Equipment on at least **10 calendar days** written notice. The Borrower may withdraw on **5 calendar days** written notice, unless the Parties agree on an earlier return.

3.3 In the event of serious safety risk, unauthorised use, infringement of ownership rights or material breach, the aggrieved Party may require the **immediate suspension of use**; the return is arranged without undue delay.

3.4 The agreement terminates automatically if the Borrower ceases trading, becomes subject to insolvency or liquidation proceedings, or loses the authorisations required to operate. In that case the Equipment is returned within **10 days**.

4 Delivery and initial condition revised

4.1 By signing this agreement, and provided that physical delivery took place on the date stated in clause 3, the Borrower **confirms receipt** of the Equipment and the accessories listed in clause 1.1. If delivery takes place after signature, the Parties confirm the date and actual receipt in writing, including by e-mail.

4.2 **Condition at delivery.** On delivery the Parties complete **Annex 2** and take **dated photographs, jointly**, of the Equipment and of each handpiece. The photographs are attached to this agreement and constitute the reference condition for any subsequent claim.

> **WHY PHOTOGRAPHS AT DELIVERY**
> Clause 10 requires photographs on **return**. Without photographs at **delivery** there is no basis for comparison, and neither Party can show whether damage is new or pre-existing. The two sets of photographs protect both.

4.3 Borrower's reservations as to the condition observable at delivery: ..... This confirmation does not exclude hidden or manufacturing defects that may be demonstrated later.

5 Operators and certification new

5.1 The Lender provides **initial training** for the operators and makes available the documentation required for safe use.

5.2 **Use of the Equipment is reserved to operators holding a valid NIPEC Operator Certificate**, named in Annex 1. The Borrower shall prevent use by anyone else.

5.3 The **NIPEC Standard** for the Equipment — protocols, operating rules and conditions of compliant use — forms an integral part of this agreement and is delivered to the Borrower on the delivery date.

5.4 Damage arising from use by an operator **without a valid Certificate** remains the Borrower's responsibility.

6 Rules of use and safety

6.1 The Borrower shall comply with the manufacturer's manuals, indications, contraindications and protocols; maintain a suitable environment; and neither modify nor open the Equipment.

6.2 The Borrower is responsible for informing any persons undergoing tests, obtaining the necessary consents, verifying contraindications and retaining the related documentation, in accordance with applicable law.

6.3 Any incident, malfunction or suspected risk shall be reported to the Lender **immediately and in writing**; use is suspended until verification and documented instructions from an authorised technician.

7 Maintenance, defects, damage and loss

7.1 The Borrower carries out cleaning and routine care in accordance with the manual. Technical work, calibration and repairs are carried out **solely by authorised service**, in coordination with the Lender.

7.2 The Borrower is liable for proven damage caused by impact, unsuitable humidity, negligence, use contrary to the protocols, unauthorised work, loss or failure to safeguard, to the extent attributable to its acts or omissions.

7.3 **Theft, fire and events.** In the event of theft, robbery, fire or natural event, the Borrower shall **file a report with the authorities within 24 hours** and send a copy to the Lender within **48 hours**. In the event of total loss or irreparable damage not attributable to the Lender, the **replacement value** stated in clause 1.1 is due, less any amount paid by insurance.

7.4 The Lender is liable, under applicable law, for pre-existing, hidden or manufacturing defects not caused by the Borrower, and for deficiencies in the documentation it is required to supply. **Fair wear and tear is not recoverable damage.**

7.5 In the event of a defect the Parties document the condition and, if the cause is disputed, obtain an assessment from an authorised technician or an independent expert accepted by both. Costs are borne by the Party responsible according to the established cause; failing such a finding, the Parties agree in writing before any work is carried out.

8 Personal injury and insurance revised

8.1 Each Party is liable for damage caused by its own breaches, under applicable law. The Borrower is responsible for the acts of its operators and for tests carried out on its premises where the damage arises from improper use or failure to follow the protocols. The Lender is not relieved of the liabilities imposed on it by law for defects or its own acts.

8.2 · CONDITION PRECEDENT FOR TESTS ON PERSONS

No test may be carried out on a person in the absence of valid public and professional liability insurance, stated below, a copy of which is delivered to the Lender.

Policy no.	.....
Insurer	.....
Limit of indemnity	€ .....
Period of cover	from ..... / ..... / ..... to ..... / ..... / .....

Until these fields are completed, the Equipment may be used **for technical testing without persons only**.

9 Intellectual property, confidentiality and data

9.1 Protocols, manuals, training materials and methodologies owned by the Lender or by their respective owners may not be copied, published, distributed or used to train third parties without the written authorisation of the rights holder.

9.2 The Borrower shall grant access to its authorised employees only to the extent necessary for the purposes of this agreement. The Parties shall keep non-public information confidential and shall process personal data, including client data, in accordance with applicable law.

10 Return of the Equipment

10.1 At the end of the period of use the Parties set the date and place of return and document it in **Annex 3**. The Equipment is returned complete with the accessories delivered, clean, switched off and in good working order, allowing for fair wear and tear.

10.2 Initial transport at the expense of .....; return transport at the expense of ..... Dismantling, packing, transport and collection follow the safety instructions. Risk in transit lies with the Party arranging it, within the limits of its liability, unless otherwise agreed in writing.

10.3 Discrepancies and disputed damage are documented in writing, with **photographs** and a description in Annex 3, **by comparison with the delivery photographs** under clause 4.2. Signature acknowledging physical receipt does not imply admission of liability for disputed damage.

11 Notices, language, governing law and disputes revised

	E-MAIL	TELEPHONE
Lender	.....	.....
Borrower	.....	.....

11.1 Contractual notices are given in writing to the addresses stated above. Any change is notified without delay.

11.2 **Language.** This agreement is drawn up in Italian and in English. In the event of divergence **the ..... version prevails**. If produced in court proceedings in Albania, the Parties shall arrange a sworn translation into Albanian.

11.3 This agreement is governed by the **law of the Republic of Albania**. The Parties shall attempt to settle disputes by negotiation within **15 days** of written notice; failing agreement, they shall refer the matter to the courts having jurisdiction by law.

11.4 Any amendment shall be made in writing and signed by both Parties. **Annexes 1, 2 and 3** form an integral part of this agreement, together with the NIPEC Standard referred to in clause 5.3. This agreement is executed in two originals of equal value, one for each Party.

TO BE COMPLETED BEFORE SIGNATURE

Representatives and capacities · manufacturer and marking (cl. 1.1) · **replacement value** (cl. 1.1) · delivery and return dates (cl. 3) · centre and installation address (cl. 2.2) · **insurance details** (cl. 8.2) · contact details (cl. 11) · **prevailing language** (cl. 11.2) · Annexes 1 and 2 completed and photographs attached.

Each page is initialled; the final signatures and the three Annexes are signed in full.

Signatures

FOR THE LENDER — PHD SYSTEM SH.P.K.

Name and surname .....

Capacity .....

Signature and stamp .....

FOR THE BORROWER — MEDICAL SPA GROUP AE

Name and surname .....

Capacity .....

Signature and stamp .....

THREE ANNEXES FOLLOW, FORMING AN INTEGRAL PART OF THIS AGREEMENT

Annex 1	Training and operator register	*completed at the training session*
Annex 2	Condition of the Equipment at delivery	*completed on the delivery day, with the photographs*
Annex 3	Return confirmation	*completed on return, by comparison with Annex 2*

The **NIPEC Standard** for the Equipment, referred to in clause 5.3, is added to these.

Annex 1 — Training and operator register

Agreement no. ..... · Equipment: Multishape Afrodite VS++ — s/n YD400337

Date and duration of training	..... / ..... / ..... · ..... hours
Trainer / organisation	.....
Topics and protocols covered	.....
Documentation delivered	.....

Operators authorised to use the Equipment

Only the operators listed here, holding a valid Certificate, may use the Equipment (cl. 5.2).

#	NAME AND SURNAME	CERTIFICATE NO.	EXPIRY	OPERATOR'S SIGNATURE
1			...../...../.....	
2			...../...../.....	
3			...../...../.....	
4			...../...../.....	

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Annex 2 — Condition of the Equipment at delivery

Completed on the day of delivery, together with the photographs

Agreement no. ..... · Date and place: ..... / ..... / ..... — .....

ITEM	PRESENT	CONDITION OBSERVED
Main unit — s/n YD400337	☐ yes	
Large handpiece	☐ yes	
Medium handpiece	☐ yes	
Small handpiece	☐ yes	
Cavitation handpiece	☐ yes	
Power supply unit	☐ yes	
User manual *cl. 1.4*	☐ yes	
Conformity documentation *cl. 1.4*	☐ yes	
NIPEC Standard *cl. 5.3*	☐ yes	

☐ **Dated photographs taken jointly** — number of shots: ..... · held by: .....

Borrower's reservations: .....

.....

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Annex 3 — Return confirmation

Completed on the day of return, by comparison with Annex 2

Agreement no. ..... · Date and place: ..... / ..... / ..... — .....

ITEM	RETURNED	CONDITION ON RETURN
Main unit — s/n YD400337	☐ yes	
Large handpiece	☐ yes	
Medium handpiece	☐ yes	
Small handpiece	☐ yes	
Cavitation handpiece	☐ yes	
Power supply unit	☐ yes	
Manual and documentation	☐ yes	

☐ **Return photographs** — number of shots: ..... · ☐ compared with the delivery photographs (Annex 2)

Discrepancies found: .....

Observations and reservations of the Parties: .....

CLAUSE 10.3

Signature acknowledging physical receipt **does not imply admission of liability** for disputed damage.

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